

Court No. - 32

Case :- WRIT - C No. - 37725 of 2019

Petitioner :- Mohd. Mubeen Alias Hazi
Mohammad Mubeen And Another

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ganga Bhushan
Mishra

Counsel for Respondent :- C.S.C.,Baleshwar
Chaturvedi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Neeraj Tiwari,J.

1. This writ petition, inter alia, has been filed for the following relief;

"(i). A writ order or direction in the nature of certiorari quashing impugned final assessment order dated 8.4.2019 passed by respondent no.2.

(ii) Issue a writ, order or direction in the nature of mandamus directing the respondents authority to not adopt any coercive measures against the petitioners pursuant to the impugned order dated 8.4.2019 passed against the petitioner no.1

(iii) Issue a writ, order or direction in the nature of mandamus directing the respondent authorities to provide the proper opportunity to the petitioners to defend himself/herself as per the provisions contained in Clause 6.8/8.1/8.2 of the Uttar Pradesh Electricity Supply Code, 2005 before taking any action in the matter against the petitioners and also supplied the copies of the checking report bearing No.82/43 dated 19.02.2019 as well as provisional assessment notice bearing no.911 dated 23.02.2019 to the petitioners and further restore the electricity supply of the petitioner no.2."

2. Mr. Baleshwar Chaturvedi, learned counsel for the Electricity Department has submitted that an inspection was made of the premises in questions and the petitioners were found committing theft of electricity, as such, after issuing a notice

directing the petitioners to file his objection to the provisional assessment so made against the petitioners.

3. Learned counsel for the petitioner has submitted that the respondents are taking coercive action against the petitioner without giving any opportunity of hearing and without following the provisions contained under the U.P. Electricity Supply Code, 2005. .

4. Considering the peculiar facts and circumstances of the case and with the consent of the learned counsel for the parties, this writ petition is being **disposed of** with a direction to the petitioners to appear in person or through authorized agent on 12.12.2019 at 11 A.M. before the Respondent No. 2, Executive Engineer along with their objections and adduce any evidence, if any, in support of their contention. The Respondent No. 2, thereafter, within a period of 4 weeks shall pass a fresh final order by a speaking order after considering the objections of the petitioners as well as the contention raised by the petitioners.

5. Needless to mention here that in case the petitioners are aggrieved with the final order, if any, passed against the petitioners, it will be open for the petitioners to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

6. For a period of six weeks or till the final order is passed by the Respondent No. 2, Executive Engineer, whichever is earlier, no coercive action shall be taken against the petitioners.

7. In case, the petitioners fail to appear before the

Respondent No. 2, Executive Engineer and does not file her objection/documents on the date and time indicated above, the benefit granted to the petitioners under this order shall cease to operate automatically.

8. We make it clear that we have not entered into the merits of the case and the same shall be decided by the authority concerned on its own merits.

9. With this observation, the writ petition stands finally disposed of.

Order Date :- 26.11.2019

Junaid